

		Further, he lays no foundation for authentication of Exhibit A. He states that Exhibit A "is a true and correct copy of the document entitled "JOINT EXERCISE OF POWERS AGREEMENT RELATING TO THE CSCDA COMMUNITY IMPROVEMENT AUTHORITY" which I believe to be a true and correct copy of the document forming the public entity "CSCDA COMMUNITY IMPROVEMENT AUTHORITY" on or about October 15, 2020." (Price Decl. ¶ 4.) In sum, Price has not sufficiently authenticated Exhibit A, nor has he laid any foundation for his conclusion that CSCDA is a public entity within the meaning of the Government Claims Act. Whether CSCDA is a public entity is a disputed ultimate fact in this case. Thus, it cannot be said that the Complaint is deficient for failure to allege compliance with the Government Claims Act. Accordingly, the demurrer is OVERRULED. CSCDA shall file its answer within 20 days. Defendants' requests for judicial notice are DENIED. The materials requested to be judicially noticed are not the proper subject of judicial notice. Plaintiffs' requests for judicial notice are DENIED as immaterial to the resolution of this demurrer. The Case Management Conference is continued to August 13, 2026 at 1:30 p.m. <i>CSCDA to give notice.</i>
103	Club Speed, LLC vs. K1 Speed, Inc., 22-01241507	Defendants Outlier K1S Equity Holdings, LLC and David Tedesco (collectively, "Outlier Defendants") demur to the third and fifth causes of action of plaintiff Club Speed, LLC's ("Clubspeed" or "Plaintiff") First Amended Complaint (FAC). <i>Intentional Interference with Contract</i> Outlier Defendants argue this cause of action fails to allege sufficient facts because there are no specific actions alleged against them, Plaintiff improperly attempts to lump all defendants together, and the allegations are made on information and belief without including any information that led Plaintiff to believe the allegations to be true. Outlier Defendants further argue that in a proposed second amended complaint attached to Plaintiff's motion for leave to amend, which was withdrawn before being heard, Plaintiff fails to allege that they made any of the alleged false or disparaging statements to K1 franchisees.

		The Court will not consider any allegations made in Plaintiff's proposed second amended complaint, as they are irrelevant to whether the FAC properly states a claim. " 'The elements which a plaintiff must plead to state the cause of action for intentional interference with contractual relations are (1) a valid contract between plaintiff and a third party; (2) defendant's knowledge of this contract; (3) defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage.' " <i>(Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 55.)</i> The FAC alleges that Clubspeed and defendant K1 Speed, Inc. ("K1") entered into software license agreements and a referral agreement pursuant to which K1 agreed that Clubspeed would be the exclusive partner for K1 and its software used at 29 current locations as well as all new locations. Plaintiff alleges that K1 breached the agreements by developing its own software. Plaintiff alleges that it had valid contracts with K1 franchisees, defendants knew of the existence of those contracts, and defendants, with the intent to interfere, caused a disruption of those contracts by directing the franchisees to switch to new software. As a result, Plaintiff alleges it has suffered damages in an amount not less than \$300,000. These allegations are sufficient to establish each element of a cause of action for intentional interference. The FAC understandably does not allege any specific facts against the Outlier Defendants, as they were added as Doe defendants after the FAC was filed. However, as Doe defendants, the Outlier Defendants are alleged to be legally responsible for the events and damages alleged in the FAC. (FAC ¶ 10.) Outlier Defendants offer no authority showing that these allegations against them as Doe defendants are insufficient as a matter of law. Further, while Outlier Defendants are correct that allegations made on information and belief must be accompanied by information that leads the plaintiff to believe that the allegations are true, the Court finds that the facts alleged in the FAC taken as a whole provide such information. <i>Trade Libel</i> Outlier Defendants argue that this cause of action fails to allege any publication for purposes of a trade libel or alleged false statements.
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		Plaintiff concedes the fifth cause of action is technically mislabeled and instead should be one for defamation. Thus, so long as a cause of action for defamation is properly alleged, the Demurrer must be overruled. (<i>Adelman v. Associated Intern. Ins. Co.</i> (2001) 90 Cal.App.4th 352, 359; <i>Sheehan v. San Francisco 49ers, Ltd.</i> (2009) 45 Cal.4th 992, 998.) The elements of a defamation claim are "(1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage." (<i>Wong v. Tai Jing</i> (2010) 189 Cal.App.4th 1354, 1369.) Plaintiff alleges that defendants made false statements about Plaintiff to persons with whom Plaintiff is contracted, including statements that Plaintiff lies about its customer count and is a shell that does not make any money, steals money in processing credit cards, and engaged in wrongful conduct harming a former owner. Plaintiff alleges these statements had a defamatory meaning because they would tend to lower Plaintiff's reputation in the industry and, to the extent they accuse Plaintiff of engaging in criminal conduct, they are defamatory per se. These allegations set forth facts establishing all of the elements of a defamation cause of action. Based on the above, the Demurrer is OVERRULED. As Outlier Defendants already filed their Answer on November 15, 2025, no further responsive pleading is required. <i>Moving party to give notice.</i>
104	Holl vs. ADK Bancorp, Inc., 22-01257212	<u>Defendant 5 Star Housing, LLC's Motion for Attorney's Fees</u> Defendant, 5 Star Housing, LLC ("5 Star Housing"), moves for an order awarding reasonable attorneys' fees in the amount of \$35,400 against Plaintiff Mai Tran Holl. 5 Star Housing contends that this motion is brought pursuant to Code of Civil Procedure sections 1032, 1033.5, and 1717; that the Residential Purchase Agreement ("RPA") in this action includes a broad provision entitling the prevailing buyer to seller to reasonable attorney's fees and costs from the non-prevailing or seller in any action between the buyer and seller arising out of the RPA; that 5 Star Housing assigned its RPA buyer's rights to Defendant My Groups Inc. which Plaintiff accepted and signed; and that the Assignment did not release 5 Star Housing from the obligations and covenants under the RPA and preserved